

		<i>Board of Medical Examiners</i> (1974) 11 Cal.3d 1, 21–22 in support of her contention that unequivocal discovery admissions carry substantial weight on summary judgment, and a later declaration contradicting them does not, alone, create a triable issue absent a credible explanation. But there are no unequivocal discovery admissions. Plaintiff set forth in his responses to special interrogatories, on multiple occasions, that he suffered anxiety. (See DF Ex. C; DF. Ex. E). These responses were served at the same time as the form interrogatory responses. Accordingly, there is a triable fact on the issue of damages. <u>Litigation Privilege -Civ. Code § 47(b)</u> Finally, Defendant contends that her conduct is independently protected by the litigation privilege set forth in Civil Code section 47(b). However, Defendant appears to abandon this defense to the cause of action in her Reply, wherein she states: Plaintiff relies on <i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202, and Choi agrees with its relevant distinction: the litigation privilege does not immunize independently tortious, noncommunicative evidence-gathering merely because later used in litigation. (<i>Id.</i> at pp. 209 211.) Choi does not rely on Civil Code section 47(b) to immunize the antecedent review of the iPad; the privilege is invoked only as to later qualifying communications made in the Family Court proceedings.” (Reply, 10:13-19). In her Reply, Defendant contends that she does not ask the court to hold every communication with school personnel privileged, but rather to note that her testimony concerns transmission of court documents or files containing photographs, and that this distinction remains relevant to the high-offensive inquiry. (Reply, 10:26-27, 11:1). However, the test of whether conduct is highly offensive contains a multitude of factors to consider. Furthermore, as discussed above, Plaintiff testified that she could not identify the full scope of what she reviewed, copied or photographed from his iPad. Accordingly, the motion is DENIED. Defendant Choi shall give notice.
2	Cardoza vs. Gaytan	Plaintiff Rick Alika Vierra Cardoza’s motion for relief from sanctions is DENIED. Plaintiff has not sufficiently established he is unable to pay the sanctions. Plaintiff does not provide any evidence that he does or does not receive